Lexis® Middle East

Qatar Law No. 24/2018
Promulgating the Income Tax Law

Type	Law
Issued on	13 Dec 2018 (corresponding to 6 Rabi' Al-Thani 1440 H)
Nature	Law
Jurisdiction	Qatar
Copyright	LexisNexis

Document link: https://www.lexismiddleeast.com/law/Qatar/Law_24_2018/en

LexisNexis®

Table of contents

Income Tax Law 4
Title 1 - Definitions *(art. 1 - 1)* 4
Title 2 - Scope of Validity of the Tax *(art. 2 - 6)* 5
Chapter 1 - Imposition of Tax *(art. 2 - 3)* 5
Chapter 2 - Tax Exemptions *(art. 4 - 4)* 6
Chapter 3 - Accounting Period *(art. 5 - 6)* 8
Title 3 - Calculation of the Tax *(art. 7 - 9)* 8
Chapter 1 - Taxable Income *(art. 7 - 8)* 8
Chapter 2 - Tax Rate *(art. 9 - 9)* 8
Title 4 - Tax Obligations *(art. 10 - 13 bis 1)* 9
Chapter 1 - Registration and Notification *(art. 10 - 10)* 9
Chapter 2 - Submittal of Tax Declarations *(art. 11 - 11 bis)* 9
Chapter 3 - Accounting Obligations *(art. 12 - 13 bis 1)* 9
Title 5 - Authority's Powers and Duties *(art. 14 - 16)* 11
Chapter 1 - Tax Assessment *(art. 14 - 15)* 11
Chapter 2 - Confidentiality *(art. 16 - 16)* 11
Title 6 - Objections and Grievances *(art. 17 - 19)* 11
Chapter 1 - Objections *(art. 17 - 18)* 11
Chapter 2 - Grievances *(art. 19 - 19)* 12
Title 7 - Tax Collection and Refund *(art. 20 - 23)* 12
Chapter 1 - Tax Collection *(art. 20 - 20)* 12
Chapter 2 - Sequestration of the Tax Payer's Monies *(art. 21 - 22)* 13
Chapter 3 - Refund of the Tax and Financial Penalties collected unlawfully *(art. 23 - 23)* 13
Title 7 bis - Global and Local Minimum Tax *(art. 23 bis - 23 bis 8)* 13
Title 8 - Financial Penalties and Sanctions *(art. 24 - 32)* 15
Chapter 1 - Financial Penalties *(art. 24 - 25)* 15
Chapter 2 - Sanctions *(art. 26 - 32)* 16
Title 9 - General Provisions *(art. 33 - 39)* 17
Notes 19

Abrogating

Qatar Law No. 21/2009 dated 17/11/2009

Qatar Law No. 17/2014 dated 15/09/2014

Amended by:

Qatar Law No. 11/2022 dated 22/12/2022

Qatar Law No. 22/2024 dated 29/12/2024[1 p.19]

We, Tamim bin Hamad Al-Thani, Emir of the State of Qatar,

Having perused the Constitution,

The Income Tax Law promulgated by Qatar Law No. 21/2009;

Qatar Law No. 17/2014 exempting the profit shares of non-Qatari investors in some companies and investment funds from income Tax;

Qatar Financial System Law promulgated by Qatar Law No. 2/2015;

Qatar Emiri Decision No. 77/2018 on the Establishment of the General Tax Authority;

The suggestion of the Minister of Finance,

And the draft Law submitted by the Council of Ministers,

And after taking the opinion of the Shura Council,

Decided the following Law:

Article 1

The provisions of the Income Tax Law enclosed hereto shall enter into effect.

Article 2

The provisions of Article 2 were replaced by virtue of Article 1 of Qatar Law No. 11/2022 dated 22/12/2022 to read as follows:

Taking into account the provisions of Articles (9 Paragraph 2/Clause 2) and (13) of the enclosed Law, the provisions of the Tax Law shall not apply to the following:

1. Ministries, government bodies, public authorities and public institutions;
2. International organisations and their offices and branches operating in the State;
3. Salaries, wages, allowances and the like;
4. Legacies, inheritances, and capital gains resulting from the sale of an estate or a share in it, or any right contained therein.

Article 3

The Council of Ministers shall issue, upon the suggestion of the Minister of Finance, the Implementing Regulation of the enclosed Law. The Minister of Finance shall issue the decisions necessary for the implementation of the provisions thereof and until this Regulation and decisions enter into effect, the Regulation and decisions currently in force shall remain in force, without contradicting the provisions of the enclosed Law.

Article 4

The said Qatar Law No. 21/2009 and the Qatar Law No. 17/2014 shall be abrogated, as well as any provision contrary to the provisions of this Law and the enclosed Law.

The Tax exemptions in force on the date of entry into effect of the enclosed Law shall remain in force until expiry of the period specified for the same.

Article 5

All competent authorities, each within its own competence, shall implement this Law. It shall enter into effect on the date of issuance thereof. It shall be published in the Official Gazette.

Issued in the Emiri Diwan on: 06/04/1440 H

Corresponding to: 13/12/2018

Tamim bin Hamad Al-Thani

Emir of the State of Qatar

This Law was published in the Official Gazette of the State of Qatar no. 1 dated 17/01/2019, P. 3

Income Tax Law

Title 1 - Definitions

Article 1

The provisions of Article 1 were replaced by virtue of Article 2 of Qatar Law No. 11/2022 dated 22/12/2022 to read as follows:

In application of the provisions of this Law and its Implementing Regulation, the following terms and expressions shall have the meanings assigned thereto, unless the context requires otherwise:

Minister: Minister of Finance.

Authority: General Tax Authority.

Chairman: Chairman of the Authority.

Tax: Income Tax.

Person: Any individual, company and any other body of persons.

Entity: Any juristic person, or any legal arrangement holding separate financial accounts.

Activity: Profession, craft, trade, industry, Mudaraba, contracting or any work aimed at achieving profit or income, including the exploitation of movable and immovable property.

Person in Charge: Chairman of the Board, Managing Director, Authorised Director or any person representing or managing the affairs of the company, the Entity or the establishment as the case may be.

Non-Profit Organization: Any Entity that meets the following criteria:

1. To be established and active in the State or in a foreign state in which the Entity is a resident for tax purposes, in the following two cases:

   (a) Exclusively for religious, charitable, scientific, artistic, cultural, sports, educational or other similar purposes.

   (b) As a professional organization, business association, chamber of commerce, labor organization, agricultural organization, civil association or organization acting exclusively to promote social welfare.
2. To be exempt in the State or in the foreign state in which it resides for tax purposes, from the tax on income resulting from the activities mentioned in the preceding clause.
3. It shall have no shareholders or members who have ownership or interest in its income or assets.
4. There shall be no private person or for-profit entity claiming the income or assets of that Entity, and that Entity shall not distribute its income or assets to a private person or for-profit entity, unless in accordance with the administration of the charitable activities of that Entity, or as payment for reasonable consideration for services rendered, or for the use of the property or capital of that Entity, or as payment representing the fair market value of the property purchased by the Entity.
5. All assets of the Entity, upon its abolition, dissolution or liquidation, shall be distributed or returned to a non-profit organization, the government or any political subdivision (administrative or territorial) or governmental entity, as the case may be, in the State or in the foreign state in which it is a resident for tax purposes, and shall not to be distributed or returned to any Entity that engages in business that is not directly related to the purposes for which that Entity was established. This includes private associations and institutions, charitable works, and private institutions of public interest.

Project: Carrying out any business that generates income or profit.

Qatari Project: A Project run by a resident of the State.

Foreign Project: Project run by a resident of a foreign state.

Business: Performing professional services and other activities of independent nature.

Permanent Establishment: Fixed place of business where the Project conducts all or some of the works.

Immovable Property: Real estate properties, property accessory to immovable property, and real estate funds, including rights to payments in return for the exploitation of natural wealth and its resources, or rights related thereto.

Dividends:

1. Income from shares, usufruct shares, usufruct rights, mining stocks, founders' shares, or other rights to participate in profits, other than debt claims.
2. Income from other rights in companies that are subject to the tax treatment of income from the same shares under the laws of the state in which the company making the distribution resides.

Interest:

1. Income from debt-claims of every kind, whether or not secured by a mortgage, and whether or not carrying a right to participate in the debtor's profits, and in particular, income from government securities and bonds or debentures, including premiums and prizes attaching to such securities, bonds or debentures.
2. Income from Islamic financial instruments in which the essence of the contract is characterised as a loan, such as Murabaha, Istisna', Mudaraba, Musharaka, Ijarah and Sukuk contracts.

Royalties: Payments of any kind received as consideration for:

1. The use or the right to use any copyright of literary, artistic or scientific works, including cinematograph films, films or tapes used for radio or television broadcasting, or any patent, trademark, design, model, plan, secret formula or process, or for the use of, or the right to use, industrial, commercial, or scientific equipment.
2. The use or the right to use information related to industrial, commercial or scientific expertise.

Technical Services Fees: Any payments for any service of an administrative, technical or advisory nature.

Resident: Every individual who has a permanent residence available to him in the State, or has resided in the State continuously or intermittently for more than (183) one hundred and eighty-three days per year, or holds Qatari nationality, and any Entity whose place of incorporation is in the State, provided that the main and actual place of administration and management thereof is in the State.

Tax Return: Declaration of the income, expenses, exemptions and due tax submitted by the Person according to the form approved by the Authority.

Perfect Competition: Principle whereby transactions between related entities are recorded by reference to terms that would have been obtained between independent enterprises in similar transactions, and under similar conditions.

Foreign Tax: Tax actually paid to a foreign country.

Fiscal Year: Accounting period for which the project prepares its financial statements, which is the Gregorian year, or (12) twelve consecutive months ending on the last day of any month, with the exception of December, with the authorization of the Chairman.

Gross Income: The total income of the taxpayer in the fiscal year.

Net Income: Gross income after making the deductions authorised under this Law.

Taxable Income: Net income after deducting losses in accordance with this law.

Place of Effective Management: Place where the executive officers and senior management personnel of the Entity take the strategic, commercial, administrative, financial and operational decisions of the Entity, or carry out their daily work, and where the employees and other users perform the daily activities necessary for the management of the Entity.

Taxpayer: Every natural or juristic person or any other Entity, that is obligated to pay the tax, or carry out other tax duties stipulated by this law and the relevant regulations and decisions.

Regulation: Implementing Regulations of this Law.

Title 2 - Scope of Validity of the Tax

Chapter 1 - Imposition of Tax

Article 2

> ***The provisions of Article 2 were replaced by virtue of Article 2 of Qatar Law No. 11/2022 dated 22/12/2022 to read as follows:***

An annual Tax shall be imposed on the total Taxable Income of the Taxpayer arising from sources in the State during the preceding Taxable Year.

A new Article was added under No. 2 (bis) was added by virtue of Article 3 of Qatar Law No. 11/2022 dated 22/12/2022, as follows:

Article 2 bis

The income of a Qatari Project from real estate properties located abroad and the income resulting from the direct use, leasing or use of immovable property in any other way shall be taxable, taking into account the following:

1. That the Qatari Project benefiting from the income from the immovable property not conduct business in a foreign country in which the real estate producing that income is located, through a Permanent Establishment located thereat.
2. The immovable property for which the income is actually paid shall not be related to this Permanent Establishment.

Article 2 bis 1

> ***A new article was added under No. 2 (Bis 1) by virtue of Article 3 of Qatar Law No. 11/2022 dated 22/12/2022, as follows:***

Dividends paid by a foreign company residing abroad to a Qatari Project shall be taxable, and so shall be the interests and Royalties generated abroad and paid to a Qatari Project, taking into account the following:

1. The Qatari Project benefiting from the distributed profits, interests or Royalties shall not carry out business in a foreign state in which the company paying the distributed profits is a resident or in which the interests or Royalties originated, through a permanent establishment located thereat.
2. The shares, interests or other rights for which the dividends are paid, or the debt-claim on which the interest is paid, or the rights or property for which the Royalties are paid, shall not be actually related to such Permanent Establishment.

Article 2 bis 2

A new Article was added under No. 2 (Bis 2) by virtue of Article 3 of Qatar Law No. 11/2022 dated 22/12/2022, as follows:

Technical service fees generated abroad and paid to a Qatari Project shall be taxable, taking into account the following:

1. The Qatari Project benefiting from the technical service fees shall not conduct business in the foreign state in which the technical service fees are generated, through a Permanent Establishment located in that foreign state.
2. The technical service fees shall not be actually related to that Permanent Establishment.

Article 2 bis 3

A new article was added under No. 2 (Bis 3) by virtue of Article 3 of Qatar Law No. 11/2022 dated 22/12/2022, as follows:

Profits resulting from the disposal of property abroad for any Qatari project shall be taxable.

Article 2 bis 4

A new article was added under No. 2 (Bis 4) by virtue of Article 3 of Qatar Law No. 11/2022 dated 22/12/2022, as follows:

If a Qatari Project carries on business in a foreign state through a Permanent Establishment located thereat, the profits accruing to the Permanent Establishment shall not be taxable, provided that they are subject to tax in that foreign state.

Article 2 bis 5

A new article was added under No. 2 (Bis 5) by virtue of Article 3 of Qatar Law No. 11/2022 dated 22/22/2022, as follows:

Taxable Income shall include income derived from abroad from the following services:

1. Providing rights to distribute products or services.
2. Payments for the provision of marketing, procurement, financial intermediation, agency and other mediation services.
3. Fees paid to obtain guarantees or similar financial support.
4. Provision of communication services and broadcasting services.

Article 3

The incomes achieved in the State include the following:

1. Gross Income arising from an Activity exercised in the State.
2. Gross Income arising from contracts executed in whole or in part in the State.
3. Gross Income arising from properties located in the State and the capital gains arising from the disposal thereof.
4. Gross Income arising from stock or shares of companies residing in the State or listed on its financial markets, and the capital gains arising from the disposal thereof.
5. Services' fees paid to the centres, headquarters, branches or associated companies.
6. Interests of the loans obtained in the State.
7. Gross Income arising from the exploration, extraction or exploitation of natural resources located in the State.
8. Gross Income Taxable in the State based on a Tax convention. All as determined by the Regulation.

Chapter 2 - Tax Exemptions

Article 4

The provisions of Article 4 were replaced by virtue of Article 2 of Qatar Law No. 11/2022 dated 22/12/2022 to read as follows:

Without prejudice to the tax exemptions prescribed by special laws or international agreements, or which are stipulated in accordance with the provisions of Article (35) of this Law, the following incomes shall be exempted from tax:

1. Entering private associations and institutions, private charitable associations and institutions, and private institutions of public interest established in accordance with the provisions of the Law regulating any of them.
2. Bank interest and returns owed to natural persons who do not engage in taxable activity in the State, whether they are residents or not.
3. Interests and returns on public debt securities and Islamic securities issued in accordance with the provisions of the Law on the Financial System of the State, and bonds of public bodies and institutions.
4. Capital profits arising from the disposal of real estate or securities achieved by natural persons, provided that the real estate or securities disposed of is not related to the assets of a taxable activity.
5. The capital gains arising from the revaluation of the company's assets when offered as an in-kind share in return for contributing to the capital of a joint-stock company residing in the State, provided that the shares corresponding to the in-kind share are nominal, and that they are not disposed of before the lapse of five years.
6. The capital gains achieved by a Qatari Project from disposing of the following:

    a. Immovable property located abroad.

    b. Movable property that forms part of the property of a permanent establishment owned by the Qatari project abroad, including capital gains derived from the transfer of ownership of that Permanent Establishment, alone or with the entire Project.

    c. Foreign stocks, stakes or other rights.
7. Board members' fees and other similar payments received by a Qatari Project in its capacity as a member of the Board of Directors of a company residing abroad.
8. Dividends from shares and other income arising therefrom, if the amounts distributed during the tax year were deducted from the following:

    a. Profits that have been subject to tax under the provisions of this Law.

    b. Dividends distributed by a company whose profits are exempt from tax, according to the provisions of this Law or other laws.
9. Gross income arising from craft activities that do not use machines, whose total income does not exceed QAR (200,000) two hundred thousand per year, and whose average number of workers in the tax year does not exceed (3) three workers, and is practiced through one establishment.

    It shall be permissible, by a decision of the Council of Ministers, based upon the proposal of the Minister, to amend the exemption conditions stipulated in this clause.
10. Gross income generated from agricultural or fishing activities.
11. Gross income generated by non-Qatari aviation or maritime navigation companies operating in the State, on condition of reciprocity.
12. Gross income of Qatari natural persons residing in the State.
13. Total income of juristic persons residing in the State, that are wholly owned by Qataris.
14. Profits of juristic persons residing in the State in proportion to the profits of the following persons mentioned therein:

    a. Qatari natural persons.

    b. Juristic persons wholly owned by Qataris.

    c. Juristic persons partially owned by Qataris in proportion to their dividends therein.

    The provisions of this clause shall not apply to the shares of profits of juristic persons owned by the State, either wholly or partly, directly or indirectly, and operating in the field of petroleum operations and petrochemical industries.
15. Gross income arising from the authorised activities of private entities registered in the State, or registered in another state and licensed to operate in the State, within the limits of their activities, that do not primarily aim to achieve profit.
16. Share of a non-Qatari investor in the profits of companies whose shares are offered for trading in the financial markets.
17. Share of a non-Qatari investor in the profits of investment funds whose units are offered for trading in the financial markets.
18. Share of a non-Qatari investor in the profits resulting from trading all securities, including units of investment funds listed for trading in the financial markets.

The Regulations shall determine the conditions and controls for exempting the incomes provided for in this Article from tax.

Chapter 3 - Accounting Period

Article 5

The Accounting Period of the Tax Payer exercising an Activity is the Taxable Year.

However, the Tax Payer may, after obtaining the consent of the Authority, take an Accounting Period other than the Taxable Year, as determined by the Regulation.

Article 6

The Tax Payer shall determine his Taxable Income on the accrual basis for accounting in force in commercial accounting, according to the International Accounting Standards (IAS), taking in consideration the provisions of this Law and the Regulation.

The Tax Payer shall not use other accounting methods without obtaining the consent of the Authority.

Title 3 - Calculation of the Tax

Chapter 1 - Taxable Income

Article 7

The Taxable Income shall be determined on the basis of Gross Income arising from all transactions carried out by the Tax Payer, after deducting the permitted deductions and the losses set forth in this Article.

Permitted deductions shall mean the expenses and costs borne by the Tax Payer, meeting the following conditions:

1. They shall be necessary to achieve the Gross Income.
2. They shall have been actually borne and supported by documents.
3. They shall not exceed the value of fixed assets used in the Activity.
4. They shall be related to the Taxable Year.

The Tax Payer may deduct the losses incurred during the Taxable Year from the Net Income of the subsequent years.

All as determined by the Regulation.

Article 8

The following expenses and costs shall not be deducted:

1. Expenses and costs incurred to achieve an income exempt from Tax.
2. Amounts paid in violation to the laws of the State.
3. Fines and penalties imposed because of the violation of the laws of the State.
4. Expenses or losses related to recovered or recoverable compensation, if such compensation was not counted within the Gross Income of the Tax Payer.
5. Share of the total expenditure on entertainment, hotels, restaurants, vacations, club memberships and customers' gifts, according to the situations and conditions and at the rates determined by the Regulation.
6. Salaries, wages, emoluments and the like, including benefits in kind paid to the owner and his spouse and children, to the partners in a joint liability company or limited partnership company, the members of the Board of Directors, and the Manager of the limited liability company who owns, directly or indirectly, the majority of the company's shares.
7. Share of the branch in the administrative and general expenses of the centre or headquaters, exceeding the rate determined by the Regulation.
8. Commissions of the foreign companies' agents exceeding the rates determined by the Regulation.
9. Any other non-permitted discounts according to the provisions of this Law or Regulation.

Chapter 2 - Tax Rate

Article 9

The Tax rate shall be (10%) ten percent of the Tax Payer's Taxable Income during the Taxable Year.

Notwithstanding the provisions of the previous paragraph, the Tax rate shall be as follows:

1. The Tax rate and all other Tax conditions set forth in the agreements related to petrochemical industries, and those related to petroleum operations according to the definitions specified for the same in the Law no. (3) of 2007 on the exploitation of natural wealth and resources thereof shall be applied, provided that, in all cases, it is not less than (35%) thirty-five percent.
2. Taking in consideration the provisions of Tax conventions, the Royalties, interests, commissions and fees of the services rendered in whole or in part in the State and paid to non-Residents for Activities not related to a Permanent Establishment in the State, shall be withheld at source at the rate of (5%) five percent of the total amount thereof, according to the Regulation.
3. The Tax rate set forth in the agreements to which the government, Ministries, other government bodies, authorities, public institutions or government representatives are party, and concluded before entry into effect of this Law shall be applied, and in case the agreement does not specify the Tax rate, the Tax shall be imposed at a rate of (35%) thirty-five percent.

Title 4 - Tax Obligations

Chapter 1 - Registration and Notification

Article 10

Any Tax Payer exercising an Activity or earning a Taxable Income shall:

1. Register at the Authority.
2. Notify the Authority of any change that may affect his Tax obligations.
3. Apply to the Authority to obtain a Tax number.

The Regulation shall determine the conditions, rules, deadlines and procedures necessary for the same.

Chapter 2 - Submittal of Tax Declarations

Article 11

The Tax Payer shall, even if he benefits from Tax exemption, submit a Declaration to the Authority on the form prepared for this purpose, stating the Taxable Income and the amount of Tax due.

Taking in consideration the provisions related to Taxation, financial penalties and prescription set forth in this Law and Regulation, the Tax Payer may, upon the consent of the Authority, submit an amended Declaration to rectify the errors included in the Declaration of a previous Taxable Year or to add any information missed by mistake.

The Regulation shall determine the conditions, rules, deadlines and procedures necessary for the same.

Article 11 bis

> ***A new article was added under No. 11 (Bis) by virtue of Article (3) of Qatar Law No. 11/2022 dated 22/12/2022, as follows:***

An Entity that meets the criteria specified by the Regulation shall submit to the Authority a report on the minimum indicators of its core activities, according to the method and within the deadline as specified by a decision of the Minister.

An Entity shall be deemed, in relation to any reported fiscal year, not to be carrying out any substantial activity in the state, if:

1. The report stipulated in the first paragraph of this article is not submitted.
2. If no one meets the minimum indicators for the substantial activity, as specified by the Regulation.
3. If no documentary evidence of those indicators is provided to the Authority, at its request.

The Authority may, if the Entity does not have the minimum indicators of substantial activity, refuse to issue a tax residency certificate to the Entity.

Chapter 3 - Accounting Obligations

Article 12

The Tax Payer exercising an Activity in the State shall keep and maintain accounting books, records and documents according to the laws of the State and the International Accounting Standards (IAS) and the Authority may exclude some Tax Payers from this obligation. And that according to the cases, conditions and situations determined by the Regulation.

Article 13

The provisions of Article 13 were replaced by virtue of Article 2 of Qatar Law No. 11/2022 dated 22/12/2022 to read as follows:

The government entities, companies, associations, private institutions, charitable private associations and institutions, private institutions of public benefit, individual enterprises and any other Entity determined by the Regulation, shall notify the Authority of the contracts, agreements and transactions concluded by them in accordance with the limits and periods determined by the Regulation.

Taking into consideration the regional and international Tax conventions to which the State is a party, the Entities set forth in the preceding paragraph shall provide the Authority, whenever required, with any information related to Tax purposes.

Any person residing in the State shall submit to the Authority, upon its request, a detailed statement of his financial assets abroad or the rights such person has in foreign financial assets, if suspected, during the tax examination, of committing or participating in committing the acts stipulated in Article (26) of this Law.

For the purposes of the preceding paragraph, foreign financial assets shall include the following assets:

1. Financial accounts maintained with a foreign financial institution.
2. Stocks and stakes in foreign companies, partnerships and trust funds.
3. Government securities, bonds, foreign debt securities, and any other form of indebtedness.
4. Real estate properties or real estate rights.

The person required to submit the aforementioned statement shall report his foreign financial assets or the rights he has in foreign financial assets even if none of those assets or rights affect the tax liability of that person for the reported fiscal year.

The aforementioned statement shall be submitted in accordance with the controls and at the time specified by the Regulation.

Article 13 bis

A new article was added under No. 13 (Bis) by virtue of Article 3 of Qatar Law No. 11/2022 dated 22/12/2022, as follows:

The Authority may obtain information and documents for the purpose of conducting a tax examination, or for the purpose of exchanging them with foreign competent authorities, in accordance with the agreements related to administrative assistance and information exchange for tax purposes, from any person or Entity in whose possession or control such information and documents are.

In order to obtain the information required to be exchanged with the foreign competent authorities, it shall not be necessary as a condition that such information be needed by the Authority for its tax purposes, or that the Authority conducts an examination on the taxpayer in whose possession or control this information is, or who is concerned with that information, or that the acts for which information is to be obtained are criminalized in the State.

The Authority shall have the right to obtain information for the purposes specified in the first paragraph of this Article, in all tax matters, including information related to criminal tax matters.

The Authority shall be also entitled to obtain information for the purposes specified in the first paragraph of this Article, from any person in the State who has such information in their possession or under their control, regardless of any legal obligation on that person to maintain the confidentiality of the information.

Information shall be deemed under the control of a person if they have the legal right, power or ability to obtain information or documents held by another person.

Article 13 bis 1

A new article was added No. 13 (Bis 1) by virtue of Article 3 of Qatar Law No. 11/2022 dated 22/12/2022, as follows:

Companies and other entities whose head office or place of effective management is in the State shall make available to the Authority, if requested to do so, information identifying their legal and beneficial owners, including information on the persons on whose behalf the legal owners are acting as authorised persons, or under any similar arrangement, and information on persons in a series of intermediate entities between the company or other entity concerned and its beneficial owner.

Partnerships that were established in accordance with the laws of the State or that carry out their activities in the State shall make available to the Authority, if requested to do so, information that identifies the partners therein and their beneficial owners.

Trust funds that are established under the laws of the State or that are managed in the State or in which the trustee or agent is resident in the State shall make available to the Authority, if requested to do so, information on the identity of the beneficial owners, including the donor or founder, and the trustee or agent , the protector or guarantor, as the case may be, all of the beneficiaries or classes of beneficiaries, and any other natural person who ultimately exercises effective control over the Trust.

Nonprofit organisations established under the laws of the State must make available to the Authority the information that identifies the founders, members of the establishment's Board, existing beneficiaries, and any beneficial owners or persons with authority to represent them.

Information provided by legal entities and arrangements on the identity of their legal and beneficial owners shall be sufficient, accurate and up-to-date.

Title 5 - Authority's Powers and Duties

Chapter 1 - Tax Assessment

Article 14

Tax shall be assessed based on the Taxable Income stated in the Declaration and the Declaration shall be considered as Tax assessment and obligation to settle the same on the same day of submission thereof.

The Authority may amend the assessment based on the data stated in the Declaration and its supporting documents, according to the provisions of this Law and Regulation.

The Authority may also make an estimate assessment based on any available data in case the Tax Payer does not submit his Tax Declaration or does not submit the data and documents supporting the Declaration.

The Authority shall, in both cases set forth in the two previous paragraphs, notify the Tax Payer of the Tax assessment elements and their value on the form prepared for this purpose, by virtue of a registered letter or any notification means.

The liquidator shall be considered as Tax Payer and assessment procedures shall be taken against him, and that according to the conditions and rules determined by the Regulation.

Article 15

Taking in consideration the prescription provisions set forth in this Law, the Authority shall not re-assess the Tax due from the Tax Payer for a Taxable Year that was already subject to Tax assessment, unless the Authority finds new information that affect the Tax obligations of the Tax Payer, which were not taken in consideration upon the previous Tax assessment.

The Tax re-assessment decision shall be subject to the same rules applied initially on the Tax assessment decision.

Chapter 2 - Confidentiality

Article 16

> ***The provisions of Article 16 were replaced by virtue of Article 2 of Qatar Law No. 11/2022 dated 22/12/2022, to read as follows:***

The Authority’s employees shall maintain the confidentiality of information and documents that come to their knowledge or that are in their possession during or in the course of the performance of their duties.

The Authority’s employees shall be exempt from this obligation upon disclosure of such information and documents in the following cases:

1. To the Taxpayer or his agent, or any government entity, provided that the consent of the Taxpayer is obtained, unless the disclosure is prohibited by a provision of another law.
2. At the request of any judicial entity.
3. Within the framework of the procedures of exchange of information under an international or regional Tax convention to which the State is a party.

Any information obtained by the Authority from a foreign competent authority pursuant to an agreement relating to administrative assistance and exchange of information for tax purposes shall be treated as confidential and may be disclosed only to persons or authorities, including courts and administrative bodies that are competent in tax assessment or collection, law enforcement or judicial prosecution related thereto, or with respect to deciding upon appeals related to it, supervising those competences.

These persons or authorities may not use such information except for the purposes referred to, and may disclose or reveal such information in public proceedings before the courts or in judicial rulings, and information obtained by a Contracting State may be used for other purposes, if the laws of both states permit its use for such other purposes, and the competent authority of the State providing the information permits such use.

Title 6 - Objections and Grievances

Chapter 1 - Objections

Article 17

The Tax Payer may object, by a registered letter or any notification means, to the Tax assessment decision within thirty days from the date of notification thereof.

The objection shall be submitted to the Authority and the submission thereof shall result into the stay of execution of the Tax assessment decision.

If the Tax Payer does not file an objection within the period set forth in the first paragraph of this Article, the Tax assessment decision shall become final and the Tax shall be due and payable.

Article 18

The Authority shall consider the objection and notify the Tax Payer or the Person in Charge of its decision thereon, by any means of notification, within sixty days from the date of submittal of the objection.

The lapse of sixty days without any response to the objection shall be considered an implicit refusal thereof.

In case the Tax Payer approves the decision of the Authority on the objection filed by him, the Tax shall be finally assessed accordingly.

Chapter 2 - Grievances

Article 19

One or more committees shall be established at the Authority under the name “Tax Appeal Committee”, presided by a judge from the Court of Appeal selected by the Supreme Judicial Council.

A Council of Ministers decision shall be issued upon the suggestion of the Minister, on the Committee's formation, regulation of work, procedures of grievance thereat and remuneration.

A decision shall be issued by the Minister nominating the Presisdent and members of the Committee.

The Committee shall be competent to decide on the claims submitted by the Tax Payer in appeal of the Authority's decisions, and any other functions determined by the decision issued regulating the work thereof. The Committee may reduce the financial penalties set forth in this Law.

The Committee shall be committed to observe the general rules and principles of the litigation proceedings.

The Tax Payer and the Authority may appeal the decision of the Committee before the Appeal Administrative Circuit within sixty days from the date of notification of the decision and such appeal shall not entail the stay of execution of the Committee's decision, unless the Court decides otherwise.

Title 7 - Tax Collection and Refund

Chapter 1 - Tax Collection

Article 20

> ***The provisions of Article 20 were replaced by virtue of Article 2 of Qatar Law No. 11/2022 dated 22/12/2022 and became as follows:***

The Taxpayer shall pay the due Tax according to the Tax Return submitted by him, on the same day of submittal of the Return, and in case of his notification of the Authority’s assessment decision through amendment or estimation, and expiry of the period of objection set forth in Article (17) of this Law, without any objection being filed, the Taxpayer shall be obliged to pay the Tax and the financial penalties related thereto within thirty days from the date of expiry of the above-mentioned period.

In case the Taxpayer approves the Authority’s decision issued on the objection, the due Tax shall be paid within thirty days from the date of notifying the Taxpayer of this decision.

In other than the cases set forth in the two preceding paragraphs, the Tax and the financial penalties related thereto shall be collected at once within thirty days from the date of expiry of the period set forth in Article (18) of this Law, if no response is received, or from the date of notification of the Taxpayer or the Person in Charge of the Authority’s response to the objection.

The Authority may, at the request of the concerned person, accept the payment of the due Tax and financial penalties related thereto in instalments, as set out in the Regulation. If the Taxpayer does not pay any of the instalments on the scheduled date, all the remaining instalments shall become immediately due.

The Taxpayer may, if he pays a foreign tax on taxable income in the State, deduct that foreign tax within the limits of the tax amount due in the State, taking into account the following:

1. That the foreign tax be a tax on income imposed by a foreign state or one of its political subdivisions or local authorities.
2. The foreign tax shall be an effectively paid tax.
3. That the foreign tax be reduced by any amounts recovered by the Taxpayer from the foreign state.

It shall not be permissible to claim foreign tax deduction on an income that is exempt from tax in the State.

Chapter 2 - Sequestration of the Tax Payer's Monies

Article 21

The Chairman may, in the cases where it is found that the Tax collection is at risk of being lost, procure the issuance of an order from the magistrate of summary justice to place the funds of the Tax Payer necessary for the collection of the Tax and the financial penalties related thereto under sequestration, whether they were in the possession of the Tax Payer or other.

These funds shall be considered placed under sequestration from the date of notification of the Tax Payer of the order of the magistrate of summary justice and he shall not dispose of the same unless in case of removal of sequestration under an order from the magistrate of summary justice.

The Tax Payer and the concerned parties may appeal the order of placement under sequestration before the competent Court within thirty days from the date of notification.

Article 22

If the decision of Tax assessment and the financial penalties related thereto has become final and they were not paid on the specified date, the Chairman shall take actions to place the funds of the Tax Payer necessary for the Tax collection under sequestration, whether such funds are in the possession of the Tax Payer or others.

The Authority may request any person, by registered letter, to provide it within thirty days from the date of receipt of such letter, a Declaration of the amounts due from such person to the Tax Payer's account, and the Declaration shall include the following:

a- Amounts due from this person to the Tax Payer and the due dates thereof;

b- Amounts in his possession and due to the Tax Payer by a third party, and if he is licensed to pay to the Tax Payer on behalf of the third party.

The person mentioned in the previous paragraph shall pay the amounts due from the Tax Payer to the Authority within the limits of the amount of the Tax and financial penalties related thereto within thirty days from the date of expiry thereof. The amounts that become due on the date of submittal of the statement to the Authority, shall be paid within thirty days from such date.

In the event of failure of such person to submit the Declaration within the specified period or in case of non-payment of the amounts to the Authority according to the provisions of the previous paragraph, the Authority shall take actions to place the funds of such person under sequestration.

In order to apply the provisions of paragraphs 1 and 4 of this Article, the Authority shall notify the debtor and the sequestration shall be placed by the Authority according to the provisions of the Law.

The provisions of paragraphs 2, 3 and 4 of this Article shall not apply to banks, except by an order from the Court.

Chapter 3 - Refund of the Tax and Financial Penalties collected unlawfully

Article 23

Taking in consideration the prescription provisions set forth in this Law, the Tax Payer may recover the amounts of the Tax and financial penalties collected unlawfully, by means of an application submitted to the Authority.

The Authority shall notify the Tax Payer of its decision concerning the recovery notification within sixty days from the date of submittal thereof.

The Tax Payer may lodge an appeal before the Tax Appeal Committee in case the Authority rejects the recovery application or in case of the Authority's failure to notify the Tax Payer of its decision within the said period.

In case of delay of the Authority in refunding the unlawfully collected amounts within the specified period, the Tax Payer shall have the right to obtain compensation calculated according to the provisions of the Regulation.

Title 7 bis has been added to the Income Tax Law by virtue of Article 2 of Qatar Law No. 22/2024 dated 29/12/2024 to read as follows:

Title 7 bis - Global and Local Minimum Tax

Article 23 bis

> ***A new article was added under no. 23 bis by virtue of Article 2 of Qatar Law No. 22/2024 dated 29/12/2024 to read as follows:***

In the implementation of the provisions of this Title as well as the regulation and decisions issued for its implementation, the following terms shall have the meanings assigned against each:

Inclusive Framework: OECD G20 Base Erosion and Profit Shifting (BEPS).

Global Anti-Base Erosion Model Rules: The rules established by the Inclusive Framework.

Comments: Comments on the Global Anti-Base Erosion Model Rules as per the Inclusive Framework.

Agreed Administrative Guidance: Guidance related to the interpretation or management of the Global Anti-Base Erosion Model Rules as per the Inclusive Framework.

Income Inclusion Rule: The rule that is stipulated in Article 2.1 of the Global Anti-Base Erosion Model Rules.

Domestic Minimum Top-Up Tax: A tax that is calculated on the basis of excess profits of local incorporated entities in a manner that is consistent with the Global Anti-Base Erosion Model Rules, and leads to the increase of the local tax compliance on excess domestic profits to 15%.

Multinational Enterprise Groups: The groups that are defined in Article 1.2 of the Global Anti-Base Erosion Model Rules.

Constituent Entities: The entities that are defined in Article 1.3 of the Global Anti-Base Erosion Model Rules.

Safe Havens: Any measures established by the Inclusive Framework to simplify and reduce administrative burdens of the multinational enterprise groups resulting from the application of the Global Anti-Base Erosion Model Rules.

Article 23 bis 1

> ***The text of a new article was added under no. 23 bis 1 by virtue of Article 2 of Qatar Law No. 22/2024 dated 29/12/2024 to read as follows:***

The Income Inclusion Rule shall apply to the Multinational Enterprise Groups operating in the State.

Article 23 bis 2

> ***The text of a new article was added under no. 23 bis 2 by virtue of Article 2 of Qatar Law No. 22/2024 dated 29/12/2024 to read as follows:***

The Constituent Entities existing in the State shall be subject to the Domestic Minimum Top-Up Tax.

Article 23 bis 3

> ***The text of a new article was added under no. 23 bis 3 by virtue of Article 2 of Qatar Law No. 22/2024 dated 29/12/2024 to read as follows:***

The Income Inclusion Rule and the Domestic Minimum Top-Up Tax mentioned in the two previous articles shall be interpreted and applied in a manner that is consistent with the Global Anti-Base Erosion Model Rules as well as the Comments and Agreed Administrative Guidance including the arrangement of rules and any safe havens.

Any amendments made to the Comments, including those mentioned in the Agreed Administrative Guidance, shall apply for the interpretation of the Global Anti-Base Erosion Model Rules, unless a cabinet decision is issued to exclude the application of any of such amendments.

Article 23 bis 4

> ***The text of a new article was added under no. 23 bis 4 by virtue of Article 2 of Qatar Law No. 22/2024 dated 29/12/2024 to read as follows:***

Taking into consideration the provisions of Article 23 bis/5, the tax obligations resulting from the application of the Income Inclusion Rule or the Domestic Minimum Top-Up Tax shall be subject to the provisions stipulated in this Law and the Regulation.

Article 23 bis 5

> ***The text of a new article was added under no. 23 bis 5 by virtue of Article 2 of Qatar Law No. 22/2024 dated 29/12/2024 to read as follows:***

The Council of Ministers shall issue the controls of the application of the provisions of this Title including the following in particular:

1. Registration for the purposes of application of the Income Inclusion Rule and the Domestic Minimum Top-Up Tax.
2. Acknowledgment related to the global information for combating base erosion stipulated in Article 8.1.1 of the Global Anti-Base Erosion Model Rules.
3. Notification about the identity of the entity submitting the acknowledgment related to the global information for combating base erosion and the country in which such entity exists, as stipulated in Article 8.1.3 of the Global Anti-Base Erosion Model Rules.
4. Acknowledgment related to the supplementary tax resulting from the application of the Income Inclusion Rule.
5. Acknowledgment related to the supplementary tax resulting from the Domestic Minimum Top-Up Tax.

Article 23 bis 6

> ***The text of a new article was added under no. 23 bis 6 by virtue of Article 2 of Qatar Law No. 22/2024 dated 29/12/2024 to read as follows:***

The Authority shall issue the circulars and guides deemed necessary for the implementation of the provisions of this Title in consultation with the entities and authorities having preferential and special tax systems, whenever necessary.

Article 23 bis7

> ***The text of a new article was added under no. 23 bis 7 by virtue of Article 2 of Qatar Law No. 22/2024 dated 29/12/2024 to read as follows:***

Taking into consideration the provisions of Article 24 of this Law and the decisions issued for the implementation of Article 34 thereof, the Chairman or his delegate shall impose a financial penalty in the cases stipulated below:

1. Any taxpayer who does not provide the tax returns stipulated in this Title within the time-limits prescribed as per the cabinet decision mentioned in Article 23 bis 5 of this Law shall be subject to a financial penalty of QAR 500 for every day of delay without exceeding QAR 180.000.
2. Any taxpayer who fails to pay the supplementary tax resulting from the application of the Income Inclusion Rule or the application of the Domestic Minimum Top-Up Tax within the period set by the cabinet decision stipulated in Article 23 bis/5 of this Law shall incur a financial penalty of 2% of the amount of the due tax for each month of delay or part thereof, without exceeding the amount of the due tax.
3. Whoever violates the provisions of registration and notification stipulated in this Title and the cabinet decision mentioned in Article 23 bis/5 of this Law shall be subject to a financial penalty of QAR 20.000.

The concerned party shall be informed of the financial penalties imposed as determined in the Regulation.

Article 23 bis 8

> ***The text of a new article was added under no. 23 bis 8 by virtue of Article 2 of Qatar Law No. 22/2024 dated 29/12/2024 to read as follows:***

The provisions of this Title shall apply notwithstanding any conflicting rule in any law in force in the State, including laws related to preferential or special tax systems and their related regulations.

Entities and bodies having special tax regulations by virtue of the laws governing them shall establish the regulations and rules deemed necessary for the implementation of this Title in coordination with the Authority, provided that this is consistent with the Global Anti-Base Erosion Model Rules as well as the Comments and Agreed Administrative Guidance.

The provisions of this Title shall only apply to the fiscal years that start on or after 01/01/2025.

Title 8 - Financial Penalties and Sanctions

Chapter 1 - Financial Penalties

Article 24

> ***The provisions of Article 24 were replaced by virtue of Article 2 of Qatar Law No. 11/2022 dated 22/12/2022 and became as follows:***

With the exception of acts constituting a crime according to the provisions of Article (26) of this Law, the Chairman or his authorised representative shall impose the financial penalty in the cases set forth in the following clauses:

1. Any Taxpayer who does not submit the Return within the period prescribed according to this Law and the Regulation, shall be subject to a financial penalty of QAR (500) five hundred for each day of delay, without exceeding QAR (180,000) one hundred and eighty thousand.
2. Any Taxpayer who does not pay the Tax within the period prescribed according to this Law and the Regulation and any natural or juristic person who does not provide the amount of the Tax withheld at source on the specified dates, shall be subject to a financial penalty of (2%) two percent of the due Tax per each month or part of a month of delay, without exceeding the amount of the due Tax.
3. Any Taxpayer who violates the provisions of registration and notification set forth in this Law and the Regulation shall be subject to a financial penalty of QAR (20,000) twenty thousand.
4. Any Taxpayer, benefiting from Tax exemption, who does not submit the Tax Return and the documents to be enclosed thereto according to the provisions of this Law and the Regulation, shall be subject to a financial penalty of QAR (10,000) ten thousand.

5. Any Taxpayer who violates the provisions of submittal of final audited accounts and the provisions of keeping and maintaining books of accounts set forth in this Law and the Regulation shall be subject to a financial penalty of QAR (30,000) thirty thousand.
6. Except for the government entities, every entity that does not notify the Authority of the contracts, agreements and transactions concluded according to the provision of Article (13) of this Law, shall be subject to a financial penalty of QAR (10,000) ten thousand.
7. Any person who does not withhold the Tax at source according to the provisions of the second paragraph of Clause 2 of Article (9) of this Law, shall be subject to a financial penalty equivalent to the amount of the non-withheld Tax, in addition to the payment of the due Tax.
8. Whoever violates the provisions of the decisions issued according to paragraph 2 of Article (34) of this Law, shall be subject to a financial penalty not exceeding QAR (500,000) five hundred thousand.
9. Projects that do not comply with the requirements of physical presence and substantial activity stipulated in this Law or the Regulation, shall be subject to a financial penalty of (15%) fifteen percent of their net income.

   In application of the provisions of Clauses (1) and (2) of this Article, the delay period shall start from the day following the expiry of the deadline for the submittal of the Return and shall end on the date of submittal of the Return or payment of the Tax, as the case may be.

   The concerned person shall be notified of the financial penalties imposed, as prescribed by the Regulation.

   The text of Clauses no. 10, 11 and 12 were added by virtue of Article 3 of Qatar Law No. 22/2024 dated 29/12/2024 to read as follows:
10. Every taxpayer that does not keep the required registers, documents and papers as per the provisions of this Law, the Regulation and the relevant decisions, or does not keep the same complete and accurate, or does not submit them to the Authority within the time-limit determined for this purpose or destroys them before the allowed time, shall be subject to a penalty of QAR 30.000. The penalty shall be imposed, in case of dissolution of the company or any other entity and not keeping the records, documents and papers for 5 years after dissolution, on the last directors or persons in charge thereof.
11. Any person who fails to submit information or documents requested by the Authority within the specified deadline shall be subject to a financial penalty of (QAR 200) for each piece of information or document that has not been provided, up to a maximum of (QAR 72,000).

    This financial penalty applies whether the offender is the taxpayer themselves or another person who had possession or control of the requested documents or information.
12. Any person who submits incomplete or incorrect information to the Authority shall be subject to a financial penalty of QAR 100 for each piece of incomplete or incorrect information, up to a maximum of QAR 10,000 per registration, return, notification, or application based on which the information was submitted. If it is determined by the Authority that the incomplete or incorrect information resulted in the imposition of an incorrect tax, the person who submitted such information shall be subject to an additional financial penalty equal to fifty percent (50%) of the unpaid tax resulting from the incomplete or incorrect information.

Article 25

The Chairman or his authorised representative may, within the amount of QAR (500,000) five hundred thousand, and the Minister may, in case of excess of such amount, exempt the Tax Payer, in whole or in part, from the financial penalties set forth in the previous Article in case the Tax Payer submits justifications accepted by the Authority.

The exemption provided for in this Article shall be cancelled if the Tax Payer lodges an appeal according to the provisions of Article (19) of this Law.

Chapter 2 - Sanctions

Article 26

Notwithstanding any greater sanction stipulated in any other law, the imprisonment not exceeding one year and a fine not exceeding three times the due Tax, or any of the two sanctions shall be the punishment of any Tax Payer or Person in Charge who:

1. Submits false or fictitious books, records or documents.
2. Uses fraudulent methods including the submittal of false, fictitious or incorrect data or documents, with a view to obtaining a deduction or Tax exemption or to recover the Tax already paid.
3. Does not register, intentionally, for the Tax purposes, or conceals the real income or any Activity subject to Tax.
4. Carries out any action with a view to preventing the Authority's employees from performing their duties.

Article 27

The person who intentionally participates in the violation of any of the obligations set forth in this Law shall be jointly liable with the Tax Payer or the Person in Charge, for the payment of any amounts due as a result of the violation.

The assignor, assignee, the partners in the persons' companies and the representative of the non-Resident person and his agent shall be jointly liable for the payment of the Taxes and financial penalties due to the Authority, according to the rules determined by the latter.

Article 28

Notwithstanding any greater sanction stipulated in any other law, the imprisonment not exceeding six months and a fine not exceeding QAR (50,000) fifty thousand or any of the two sanctions shall be the punishment of whomever violates the provisions of Article (16) of this Law.

Article 29

The sanctions set forth in this Law shall be doubled in case of recidivism and the accused shall be considered a recidivist if he commits a similar crime within five years from the date of execution of the sentenced sanction or its forfeiture by time limitation.

Article 30

No lawsuit shall be instituted for the crimes set forth in Articles (26) and (27) of this Law, unless upon a written request from the Chairman.

Article 31

The Chairman or his authorised representative may conciliate in the crimes set forth in Articles (26) and (27) of this Law before instituting a lawsuit, during consideration thereof and before final settlement, against payment of half of the maximum limit of the prescribed fine and payment of the due Tax and financial penalties.

The conciliation shall entail the inadmissibility of instituting a lawsuit or the lapse thereof, as the case may be.

The Public Prosecution shall order the stay of execution of the sanction in case of conciliation during its execution.

Article 32

The Authority's employees who have the capacity to act as judicial officers, by virtue of a decision issued by the Public Prosecutor in agreement with the Minister, shall have the right to seize and prove any violations to the provisions of this Law and the decisions issued in implementation thereof.

Such employees shall have the right to enter the premises and their supplements where the Tax Payer is exercising its Activity, to carry out any work required by the application of the provisions of this Law, as determined by the Regulation.

Title 9 - General Provisions

Article 33

> ***The provisions of Article 33 were replaced by virtue of Article 2 of Qatar Law No. 11/2022 dated 22/12/2022 and became as follows:***

In case the Taxpayer enters into agreements, operations or transactions, one of whose primary objectives is to avoid the payment of the due Tax, the Authority may withdraw the tax advantage obtained as a result of these agreements, operations or transactions, according to the provisions of the Regulation.

The Authority may, in any of the cases set forth in the preceding paragraph, take all or some of the following actions:

1. Recharacterise the action if its form does not reflect its actual substance.
2. Modify the amount of the Tax due from the Taxpayer or any other person related to the agreements, operations or transactions set forth in paragraph 1 of this Article.

If a Qatari Project participates directly or indirectly in the management of a foreign Project or in its control or its capital, or if a foreign Project participates directly or indirectly in the management of a Qatari Project or in its control its capital, or if the Persons themselves participate directly or indirectly in the management of a Qatari Project and a foreign Project or in controlling them or their capital; and if, in any of the aforementioned cases, conditions were set or imposed between the two Projects in their commercial or financial relations, that differ from those that may be set between two independent Projects, any profits that could have resulted from any of the two Projects may be included, even if these conditions are not applied, in the profits of the Qatari project, and be subject To tax accordingly.

The Entity shall not be entitled to obtain any tax exemption or advantage, unless the Place of its Effective Management is in the State.

Article 34

> ***The provisions of Article 34 were replaced by virtue of Article 2 of Qatar Law No. 11/2022 dated 22/12/2022, then by virtue of Article 1 of Qatar Law No. 22/2024 dated 29/12/2024 to read as follows:***

The application of this Law shall not prejudice any obligations imposed under international agreements or arrangements to which the State is a party, including the obligations related to transparency, exchange of information for tax purposes, and the obligations related to the base erosion and profit shifting.

The Minister shall issue the decisions necessary to enforce said obligations, and his decisions in this regard shall be binding on all the authorities and entities in the State, including those applying special or preferential Tax systems under the laws governing them.

Article 35

A decision may be issued by the Council of Ministers, upon the suggestion of the Minister, to amend the Tax exemptions set forth in this Law.

Article 36

The Minister shall issue, upon the suggestion of the Chairman, a decision on the rules, provisions and procedures of granting or cancelling Tax exemptions.

A decision on the exemption shall be issued by the Minister in case the exemption period does not exceed five years, and by the Council of Ministers in case of more than five years.

A decision may be issued by the Council of Ministers, upon the suggestion of the Minister, to determine a preferential Tax rate for some sectors or projects given their nature or the nature of the region in which they are established.

Article 37

The Authority's right of assessment of Tax and the financial penalties related thereto for a certain Taxable Year, shall be forfeited after five years following the year in which the Declaration was submitted by the Tax Payer.

In case the Tax Payer fails to submit the Declaration, the right of the Authority in the Tax assessment shall be forfeited after ten years following the Taxable Year in which the Tax Payer did not submit the Declaration.

In case the Tax Payer fails to register at the Authority according to the provisions of Article (10) of this Law, the period set forth in the previous paragraph shall commence from the date the Authority discovers the Tax Payer's Activities.

In addition to the legally prescribed reasons of interruption of the prescription, the periods set forth in the previous paragraphs shall be interrupted by virtue of a notification sent to the Tax Payer by registered letter, of any of the following:

a- Tax assessment decision according to the provisions of Articles (14) and (15) of this Law.

b- Payment of the due Tax or financial penalties.

c- Referral of the dispute to the Tax Appeal Committee.

Article 38

The Authority's right to collect Taxes and financial penalties shall be forfeited after ten years following the year in which the Tax and financial penalties have become due.

Article 39

The right of the Tax Payer to apply for refund of the Taxes and financial penalties unlawfully collected from him, shall be forfeited after five years from the date of proof that the Authority does not have the right to collect the Tax and the financial penalties related thereto and the date of the Tax Payer's awareness thereof.

In addition to the legally prescribed reasons of interruption of prescription, the period set forth in the previous paragraph shall be interrupted by the application in which the Tax Payer notifies the Authority, by registered letter, of its claim of refund of the Tax and financial penalties collected unlawfully.

Notes

1. ^ [p.3] This Law shall come into force from 01/01/2025 by virtue of Article 5 thereof. Thus, mention is in order.